

HEADNOTE

- “1. If in the case of a European patent a person is registered as the patent proprietor in the respective national register, there is a rebuttable presumption that the person recorded in the respective national register is entitled to be registered (R. 8.5(c) RoP). The result of such a legal presumption is to reverse the burden of explanation and proof with regard to the presumed fact. If the Applicant can refer to his listing in the registers relevant to the respective dispute, it is up to the Defendant's side to set out and, if necessary, prove that the Applicant is not entitled to be registered.*
- 2. If a patent claim contains stated purposes, these usually serve to improve understanding of the invention. As a rule, they have the indirect effect of defining the subject matter protected by the patent in such a way that it must not only fulfil the spatial-physical features, but must also be designed to be usable for the purpose stated in the patent claim.*
- 3. If the Applicant lacks positive knowledge of an infringement of property rights, grossly negligent ignorance or wilful blindness to an infringement of intellectual property rights is considered equivalent to such knowledge. The patent proprietor is not under a general obligation to observe the market. However, as soon as the holder of a property right becomes aware of specific circumstances that suggest an infringement of his property right, he is expected to take all measures readily available to him and to further clarify the circumstances. It is up to the Defendant to explain such circumstances triggering a duty to provide information.*
- 4. While Art. 69(4) EPC only provides for the provision of security for costs by the claimant, R. 158 RoP extends the group of addressees of such an Order to include "the Parties" and thus also the Defendant in the main action. In urgent proceedings, there is neither scope nor (with regard to R. 211.1(d) RoP) a need for the (analogous) application of the provision, given the urgent nature of such proceedings.”*

COURT
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PROCEEDINGS
Application for provisional
measures

PATENT
EP 2 697 391 B1

Method and product for localised or
spatial detection of nucleic acid in a
tissue sample

KEYWORDS

Right to bring an action register
presumption stated purpose
urgency knowledge of infringement
negligent ignorance
weighing-up of interests
security for costs

Rule 8 Party and party's representative**SUMMARY**

The UPC issued a procedural order. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, when a person is registered as the patent proprietor in a national register, the law presumes that person is entitled to be registered, which shifts the burden to the opposing party to prove otherwise. Stated purposes within patent claims generally serve to clarify the invention and define the protected subject matter to include not only the physical features described but also the ability to perform the stated function. The patent proprietor need not constantly monitor the market, but once becoming aware of specific circumstances suggesting infringement, must take all readily available measures to clarify those circumstances, with the burden on the opposing party to explain what triggered this duty. While the European Patent Convention limits security for costs orders to claimants, the UPC Rules extend this to all parties; however, in urgent proceedings, such security provisions need not apply given the pressing nature of the case.